

Seawall height in Bay Harbor Islands

The elevation your city requires, the datum it is measured in, and the section of code that says so.

BAY HARBOR ISLANDS • MIAMI-DADE COUNTY

5.50 ft MSL (mean sea level); optional up to 6.0 ft MSL on listed bay-facing lots

The top of any seawall cap must be at 5.50 ft above mean sea level. Certain lots facing Biscayne Bay wave action may choose to go up to 6.0 ft above MSL. The code uses MSL, not NAVD88 or NGVD29.

The detail

REQUIRED HEIGHT	Elevation at top of any seawall cap shall be 5.50 ft above MSL - Bay Harbor Islands Code Sec. 23-12(10)(c)
OPTIONAL HIGHER CAP	Lots 11-29 Blk 2; Lots 1-4 Blk 3; Lots 1-5 Blk 4; Lots 29-95 Blk 23; Tracts C-F (PB 46 Pg 5) may elect 6.0 ft above MSL - Sec. 23-12(10)(c)
APPROVAL	No seawall may be erected, constructed or repaired without written Town approval - Sec. 23-12(10)
DESIGN	Designed and certified by a registered engineer, built by licensed contractor - Sec. 23-12(10)(d)
OLDER LOW WALLS	Existing seawalls built another way may stay as non-conforming structures and may continue to be repaired; the town strongly encourages raising them to the subsection (c) height and removing failed tie-backs - Sec. 23-12(10)(h)
HOW IT MUST BE BUILT	Reinforced concrete with a cap beam on concrete pilings driven to bedrock; rip-rap cannot replace a seawall, and all existing tie-backs come out when a wall is replaced - Sec. 23-12(10)(g)

Where this comes from: Bay Harbor Islands Code of Ordinances Sec. 23-12(10)(c), (d), (g), (h) (Municode Supp. 10 Upd. 2)
Verified: 2026-10. Rules change — check the date above against today.

Before you call a contractor

1

Know your datum

A height means nothing without the datum it is measured from. NAVD88 and MLW are different reference points and the same wall gives different numbers in each. Ask which one any quoted elevation refers to.

2

Get the existing elevation surveyed

You cannot tell whether a wall meets the requirement by looking at it. A surveyor shooting the top of the cap settles it in an hour.

3

Ask what triggers the requirement

Most cities only apply the minimum to new walls or to substantial repair. What counts as substantial is defined differently in each city, and it is usually a percentage of length or of cost.

4

Ask about building higher now

Several cities require a wall built below the final figure to be engineered so it can be raised later. Doing it once is cheaper than doing it twice.